

- (d) the right of audience before the Tribunal, provided that any party shall be entitled to be heard in person, or by a representative duly authorized in writing, or by a legal practitioner.
- (e) The disposal by the Tribunal of any proceedings before it, notwithstanding that in the course thereof there has been a change in the persons sitting as members of the Tribunal;
- (f) A scale of fees for and in connection with the proceedings before the Tribunal.

Comment

Section 48 empowers the Tribunal to make regulations with the previous approval of the Central Government. Such regulations may inter alia be made in regard to the award of costs reference of any question to a member or officer of the Tribunal for report, the right of audience, the scale of fees, etc.

CHAPTER VIII

Carriage of Passengers

49 Exhibition of certain timings and Tables of fares at situations.-

(i) Every railway administration shall cause to be pasted in a conspicuous and accessible place at every station in Hindi and English and also in the regional language commonly in use in the area where the station is situated,-

(i) a table of timings of arrival and departure of trains which carry passengers and stop at that station, and

(ii) list of fares from such station to such other stations as it may consider necessary.

(2) At every station where tickets are issued to passengers, a copy of fares at every station.

50. Supply of tickets on payment of fare.- (1) Any person desirous of traveling on a railway shall, upon payment of the fare, be supplied with a ticket by a railway servant or an agent authorized in this behalf and such ticket shall contain the following particulars, namely :-

- (i) the date of issue;

(ii) the class of carriage;

(iii) the place from and the place to which it is issued; and

(iv) the amount of the fare.

(2) Every railway administration shall display the hours during which booking windows at a station shall be kept open for the issue tickets to passengers.

(3) The particulars required to be specified on a ticket under Cls. (ii) and (iii) of sub-section (i) shall,-

(a) if it is for the lowest class of carriage, be set forth in Hindi, English and the regional language commonly in use at the place of issue of the ticket; and

(b) if it is for any other of carriage, be set forth in Hindi and English:

Provided that where it is not feasible to specify such particulars in any such language due to mechanization or any other reason, the Central Government may exempt such particulars being specified in that language.

Section 50 provides for issue of tickets the particulars to be given on each ticket and also provides for display of hours at station during which tickets may be issued.

51. Provisions for case in which ticket is issued for class or train not having accommodation. – (1) A ticket shall be deemed to have been issued subject to the condition of availability of accommodation in the class of carriage and the train for which the ticket is issued.

(2) If no accommodation is available in the class of carriage for which a ticket is issued, and the holder thereof travels in a carriage of a lower class, he shall, on returning such ticket, be entitled to a refund of the difference between the fare paid and the fare payable for the class of carriage in which he travels.

Comment

Section 52 provides for cancellation of ticket and refund therefore.

53. Prohibition against transfer of certain tickets.- A ticket issued in the name of a person shall be used only by that person :

Provided that nothing contained in this section shall prevent mutual transfer of a seat or berth by passengers traveling by the same train: